

HCS HB 2481 -- SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

SPONSOR: Gragg

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on General Laws by a vote of 9 to 3. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 9 to 3.

The following is a summary of the House Committee Substitute for HB 2481.

This bill prohibits individuals that are not United States citizens or nationals from receiving assistance through the Supplemental Nutrition Assistance Program (SNAP) or through MO HealthNet, unless those individuals meet Federal definitions of "eligible alien" and "qualified alien".

The bill modifies what proof must be submitted at the time of application to include proof that the applicant is a United States citizen, United States national, or alien with an immigration status eligible for public benefits. The bill repeals an existing provision of law that prohibits employees of agencies of state or local government from inquiring about the legal status of a custodial parent or guardian applying for a public benefit on behalf of his or her dependent child who is a citizen or permanent resident.

Current law provides that applicants who cannot provide proof required under current law can sign an affidavit under oath attesting to citizenship or classification as a lawfully admitted alien. This bill adds that the affidavit must attest to such applicant's eligibility for public benefits. Currently, an applicant who has provided the sworn affidavit described is eligible to receive temporary benefits for 90 days under certain conditions. This bill modifies that time frame to be the minimum period required under Federal law, or 90 days if no minimum period is required under Federal law.

The bill provides that failure to submit acceptable documentation establishing United States citizenship, national status, or alien status eligible for public benefits will result in denial or termination of public benefits, and that no additional period of eligibility for temporary benefits will be granted to any applicant that has previously been denied public benefits at any time due to a failure to verify citizenship, national status, or alien status eligible for benefits.

Currently, after an applicant's lawful presence has been verified through the Systematic Alien Verification for Entitlements Program through the United States Department of Homeland Security, no additional verification is required. This bill repeals that provision and provides that the system utilized for verification will include, but not be limited to, the Systematic Alien Verification for Entitlements Program.

The bill provides that if any agency administering public benefits is unable to determine an applicant's or enrollee's lawful presence after authorized verification, the agency is required to suspend approval or continuation of benefits and refer the case to the Department of Homeland Security or other appropriate Federal agency.

The bill requires the Department of Social Services, when administering SNAP benefits, to consider the entire income and financial resources of any individual rendered ineligible to receive benefits under the provisions of this bill when determining the eligibility and benefit allotment of the household of which the individual is a member, and not to prorate or exclude the income or financial resources of ineligible individuals. All such income and resources will be fully considered.

This bill requires the Director of the Department of Social Services to request a waiver from the United States Department of Agriculture to authorize the State to operate SNAP in a manner that prioritizes healthy foods and nutritional value, and supports Missouri agriculture. The Director is required to explore and recommend strategies to incentivize the purchase of fresh fruits, vegetables, and Missouri-produced meat and dairy products within SNAP through existing Missouri healthy food education and access programs.

This bill is similar to HB 1222 (2025).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that this is the SNAP benefit bill from last year with some tightened definitions. This is one of the Governor's priorities and this bill codifies the language from one of his Executive Orders. Each state is adopting similar

legislation. The language used and the prioritized foods go back to the original definition of "SNAP".

Testifying in person for the bill were Representative Gragg; Arnie Dienoff; and FGA Action.

OPPONENTS: Those who oppose the bill say that this legislation may be moot because the Department of Social Services is already working on updated definitions; those definitions need to have flexibility. This area is quite muddy already and putting this into legislation may remove any flexibility.

Testifying in person against the bill were Missouri Beverage Association; Christine Woody, Empower Missouri; and International Institute of St. Louis.

OTHERS: Others testifying on the bill say the Department SNAP definitions, as they currently exist, are very broad. They would prefer that definitions are easy to follow and implement.

Testifying in person on the bill were Amanda Adams, Department of Social Services, Family Support Division; Jennifer Loveall, Department of Social Services; Missouri Petroleum & Convenience Association.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.